

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

11. ALISHA RAINS V. AARON BOYD

25FL0175

On January 14, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders. All required documents, with the exception of a blank FL-320, were served on January 16th.

The parties attended Child Custody Recommending Counseling (CCRC) on February 6, 2026, and were able to reach agreements on some issues. A report with the agreements and recommendations was prepared on March 20, 2026. It was mailed to the parties on March 25th.

Respondent filed and served a Responsive Declaration to Request for Order on March 25th.

Petitioner is requesting orders regarding the safe transportation of the children, supervision of the children at all times, the proper storage of medication, and communication between the parties in the event of an emergency. She also asks that the parents be ordered to obtain independent study when removing the children from school for 5 days, and that they notify one another when the children are reported sick to school. She asks that each parent be allowed to have reasonable video calls with the children during their non-custodial time and that neither parent may unreasonably deny, restrict, monitor, or terminate the calls. She further requests orders clarifying the court's prior orders regarding vacations with the children. She asks that the court enforce its prior orders that neither party make unilateral decisions regarding issues of legal custody. Finally, she asks that both parents be allowed to attend extracurricular activities, school events, performances, games, ceremonies and similar events regardless of which parent has custody at the time of the event.

Respondent argues that the majority of the issues raised by Petitioner have already been resolved or addressed by the court previously. He opposes the request regarding attendance at extracurricular activities, and he asks for sanctions in the amount of \$1,500 pursuant to Family Code § 271.

After reviewing the filings as outlined above, the court finds the agreements and recommendations contained in the March 20, 2026 CCRC report to be in the best interests of the minors. They are hereby adopted as the orders of the court. In addition to the aforementioned, the court is ordering the following: (1) All medications and EpiPens shall be stored safely and outside of the reach of the minors; (2) The parties may use their allotted vacation time with the children on their assigned holiday, provided that the

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vacation does not interfere with the holiday schedule of the other parent; (3) The parties are each allowed to attend extracurricular activities and school events of the children regardless of who has custodial time with the children during the event, however, contact between the non-custodial parent and the children at the event is to remain brief.

Turning to the request for sanctions, an award for attorney's fees and sanctions may be made pursuant to Family Code section 271 which states, in pertinent part, "...the court may base an award of attorney's fees and costs on the extent to which the conduct of each party or attorney furthers or frustrates the policy of the law to promote settlement of litigation and, where possible, to reduce the cost of litigation by encouraging cooperation of the parties and attorneys. An award of attorney's fees and costs pursuant to this section is in the nature of a sanction." Fam. Code § 271(a). Here, while Respondent is adamant that many of the issues had already been addressed between the parties, Petitioner maintains that Respondent was not abiding by his agreements. Additionally, there remain other issues that the parties could not agree on which did need to be addressed in CCRC. For these reasons, the court does not find that Petitioner acted solely with the intent of frustrating the policy of the law. As such, the court does not find grounds to award sanctions and the request is denied.

All prior orders not in conflict with this order remain in full force and effect.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #11: THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS CONTAINED IN THE MARCH 20, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. IN ADDITION TO THE AFOREMENTIONED, THE COURT IS ORDERING THE FOLLOWING: (1) ALL MEDICATIONS AND EPIPENS SHALL BE STORED SAFELY AND OUTSIDE OF THE REACH OF THE MINORS; (2) THE PARTIES MAY USE THEIR ALLOTTED VACATION TIME WITH THE CHILDREN ON THEIR ASSIGNED HOLIDAY, PROVIDED THAT THE VACATION DOES NOT INTERFERE WITH THE HOLIDAY SCHEDULE OF THE OTHER PARENT; (3) THE PARTIES ARE EACH ALLOWED TO ATTEND EXTRACURRICULAR ACTIVITIES AND SCHOOL EVENTS OF THE CHILDREN REGARDLESS OF WHO HAS CUSTODIAL TIME WITH THE CHILDREN DURING THE EVENT, HOWEVER, CONTACT BETWEEN THE NON-CUSTODIAL PARENT AND THE CHILDREN AT THE EVENT IS TO REMAIN BRIEF.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
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ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

THE REQUEST FOR SECTION 271 SANCTIONS IS DENIED.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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12. MELANIE SCHWARTZLER V. ROBERT CLINTON

PFL20170631

On January 16, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. Petitioner was personally served on January 22, 2026, as is required by Family Code § 215.

Petitioner has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Petitioner. She had notice of the pending requests and chose not to file an opposition. As such, the court finds good cause to treat her failure to do so as an admission that the claims made in the RFO are meritorious.

Respondent is requesting sole legal and sole physical custody of the children. He asks that Petitioner have visitation on the second and fourth Sunday of each month from 9:00am to 5:00pm.

After reviewing the filings as outlined above the court finds the requests made by Respondent are in the best interests of the minors. Respondent shall have sole legal and physical custody of the minors. Petitioner shall have parenting time the second and fourth Sunday of each month from 9:00am to 5:00pm. All prior orders not in conflict with this order remain in full force and effect.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #12: RESPONDENT SHALL HAVE SOLE LEGAL AND PHYSICAL CUSTODY OF THE MINORS. PETITIONER SHALL HAVE PARENTING TIME THE SECOND AND FOURTH SUNDAY OF EACH MONTH FROM 9:00AM TO 5:00PM. ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT.

RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR